

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director		Wage Determination No.: 2015-5715 Revision No.: 25 Date Of Last Revision: 12/03/2025
Division of Wage Determinations		

State: Virgin Islands
Area: Virgin Islands Statewide

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		18.23
01012 - Accounting Clerk II		20.46
01013 - Accounting Clerk III		22.88
01020 - Administrative Assistant		27.23
01035 - Court Reporter		20.86
01041 - Customer Service Representative I		15.75
01042 - Customer Service Representative II		17.19
01043 - Customer Service Representative III		19.29
01051 - Data Entry Operator I		15.45
01052 - Data Entry Operator II		16.86
01060 - Dispatcher, Motor Vehicle		18.97
01070 - Document Preparation Clerk		16.61
01090 - Duplicating Machine Operator		16.61
01111 - General Clerk I		15.09
01112 - General Clerk II		16.46
01113 - General Clerk III		18.47
01120 - Housing Referral Assistant		23.25
01141 - Messenger Courier		17.35
01191 - Order Clerk I		15.22
01192 - Order Clerk II		16.61
01261 - Personnel Assistant (Employment) I		18.15
01262 - Personnel Assistant (Employment) II		20.31
01263 - Personnel Assistant (Employment) III		22.65
01270 - Production Control Clerk		23.25
01290 - Rental Clerk		14.23
01300 - Scheduler, Maintenance		18.65
01311 - Secretary I		18.65
01312 - Secretary II		20.86
01313 - Secretary III		23.25
01320 - Service Order Dispatcher		16.96
01410 - Supply Technician		27.23
01420 - Survey Worker		20.86
01460 - Switchboard Operator/Receptionist		16.23
01531 - Travel Clerk I		15.71
01532 - Travel Clerk II		17.30
01533 - Travel Clerk III		19.07
01611 - Word Processor I		16.61
01612 - Word Processor II		18.65
01613 - Word Processor III		20.86
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		20.23
05010 - Automotive Electrician		19.26
05040 - Automotive Glass Installer		18.23

05070 - Automotive Worker	18.23
05110 - Mobile Equipment Servicer	16.44
05130 - Motor Equipment Metal Mechanic	20.23
05160 - Motor Equipment Metal Worker	18.23
05190 - Motor Vehicle Mechanic	20.23
05220 - Motor Vehicle Mechanic Helper	15.24
05250 - Motor Vehicle Upholstery Worker	17.29
05280 - Motor Vehicle Wrecker	18.23
05310 - Painter, Automotive	19.26
05340 - Radiator Repair Specialist	18.23
05370 - Tire Repairer	16.43
05400 - Transmission Repair Specialist	20.23
07000 - Food Preparation And Service Occupations	
07010 - Baker	22.43
07041 - Cook I	14.71
07042 - Cook II	16.31
07070 - Dishwasher	13.12
07130 - Food Service Worker	14.22
07210 - Meat Cutter	15.20
07260 - Waiter/Waitress	15.00
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	23.80
09040 - Furniture Handler	15.77
09080 - Furniture Refinisher	23.46
09090 - Furniture Refinisher Helper	18.55
09110 - Furniture Repairer, Minor	21.06
09130 - Upholsterer	23.80
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	14.64
11060 - Elevator Operator	13.92
11090 - Gardener	18.90
11122 - Housekeeping Aide	13.56
11150 - Janitor	13.56
11210 - Laborer, Grounds Maintenance	14.70
11240 - Maid or Houseman	14.44
11260 - Pruner	13.28
11270 - Tractor Operator	17.52
11330 - Trail Maintenance Worker	14.70
11360 - Window Cleaner	14.99
12000 - Health Occupations	
12010 - Ambulance Driver	23.52
12011 - Breath Alcohol Technician	24.45
12012 - Certified Occupational Therapist Assistant	33.17
12015 - Certified Physical Therapist Assistant	33.17
12020 - Dental Assistant	18.16
12025 - Dental Hygienist	53.73
12030 - EKG Technician	36.63
12035 - Electroneurodiagnostic Technologist	36.63
12040 - Emergency Medical Technician	23.52
12071 - Licensed Practical Nurse I	21.62
12072 - Licensed Practical Nurse II	24.17
12073 - Licensed Practical Nurse III	26.94
12100 - Medical Assistant	18.25
12130 - Medical Laboratory Technician	25.90
12160 - Medical Record Clerk	21.86
12190 - Medical Record Technician	24.45
12195 - Medical Transcriptionist	21.62
12210 - Nuclear Medicine Technologist	53.12
12221 - Nursing Assistant I	14.34
12222 - Nursing Assistant II	16.13
12223 - Nursing Assistant III	17.60
12224 - Nursing Assistant IV	19.76
12235 - Optical Dispenser	24.17
12236 - Optical Technician	21.62
12250 - Pharmacy Technician	19.36

12280 - Phlebotomist	21.62
12305 - Radiologic Technologist	39.45
12311 - Registered Nurse I	27.14
12312 - Registered Nurse II	33.20
12313 - Registered Nurse II, Specialist	33.20
12314 - Registered Nurse III	40.16
12315 - Registered Nurse III, Anesthetist	40.16
12316 - Registered Nurse IV	48.14
12317 - Scheduler (Drug and Alcohol Testing)	30.29
12320 - Substance Abuse Treatment Counselor	26.67
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.90
13012 - Exhibits Specialist II	27.12
13013 - Exhibits Specialist III	33.17
13041 - Illustrator I	21.90
13042 - Illustrator II	27.12
13043 - Illustrator III	33.17
13047 - Librarian	30.04
13050 - Library Aide/Clerk	17.44
13054 - Library Information Technology Systems Administrator	27.12
13058 - Library Technician	21.90
13061 - Media Specialist I	19.58
13062 - Media Specialist II	21.90
13063 - Media Specialist III	24.40
13071 - Photographer I	19.58
13072 - Photographer II	21.90
13073 - Photographer III	27.12
13074 - Photographer IV	33.17
13075 - Photographer V	40.13
13090 - Technical Order Library Clerk	21.90
13110 - Video Teleconference Technician	19.58
14000 - Information Technology Occupations	
14041 - Computer Operator I	15.93
14042 - Computer Operator II	17.82
14043 - Computer Operator III	19.87
14044 - Computer Operator IV	22.08
14045 - Computer Operator V	24.45
14071 - Computer Programmer I	(see 1) 21.27
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	15.93
14160 - Personal Computer Support Technician	23.39
14170 - System Support Specialist	25.81
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	28.51
15020 - Aircrew Training Devices Instructor (Rated)	34.51
15030 - Air Crew Training Devices Instructor (Pilot)	41.35
15050 - Computer Based Training Specialist / Instructor	28.51
15060 - Educational Technologist	36.77
15070 - Flight Instructor (Pilot)	41.35
15080 - Graphic Artist	24.25
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	41.35
15086 - Maintenance Test Pilot, Rotary Wing	41.35
15088 - Non-Maintenance Test/Co-Pilot	41.35
15090 - Technical Instructor	19.28
15095 - Technical Instructor/Course Developer	23.60
15110 - Test Proctor	15.58
15120 - Tutor	15.58
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	11.42

16030 - Counter Attendant	11.42
16040 - Dry Cleaner	12.65
16070 - Finisher, Flatwork, Machine	11.42
16090 - Presser, Hand	11.42
16110 - Presser, Machine, Drycleaning	11.42
16130 - Presser, Machine, Shirts	11.42
16160 - Presser, Machine, Wearing Apparel, Laundry	11.42
16190 - Sewing Machine Operator	13.07
16220 - Tailor	13.44
16250 - Washer, Machine	11.86
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	25.01
19040 - Tool And Die Maker	29.64
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	16.67
21030 - Material Coordinator	20.71
21040 - Material Expediter	20.71
21050 - Material Handling Laborer	15.81
21071 - Order Filler	13.85
21080 - Production Line Worker (Food Processing)	16.67
21110 - Shipping Packer	16.85
21130 - Shipping/Receiving Clerk	16.85
21140 - Store Worker I	11.37
21150 - Stock Clerk	14.13
21210 - Tools And Parts Attendant	16.67
21410 - Warehouse Specialist	16.67
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	27.32
23019 - Aircraft Logs and Records Technician	22.46
23021 - Aircraft Mechanic I	25.99
23022 - Aircraft Mechanic II	27.32
23023 - Aircraft Mechanic III	28.44
23040 - Aircraft Mechanic Helper	19.79
23050 - Aircraft, Painter	24.61
23060 - Aircraft Servicer	22.46
23070 - Aircraft Survival Flight Equipment Technician	24.61
23080 - Aircraft Worker	23.68
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	23.68
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	25.99
23110 - Appliance Mechanic	24.75
23120 - Bicycle Repairer	19.86
23125 - Cable Splicer	25.99
23130 - Carpenter, Maintenance	24.62
23140 - Carpet Layer	23.42
23160 - Electrician, Maintenance	32.37
23181 - Electronics Technician Maintenance I	23.68
23182 - Electronics Technician Maintenance II	25.01
23183 - Electronics Technician Maintenance III	26.29
23260 - Fabric Worker	22.22
23290 - Fire Alarm System Mechanic	25.99
23310 - Fire Extinguisher Repairer	21.10
23311 - Fuel Distribution System Mechanic	26.96
23312 - Fuel Distribution System Operator	21.89
23370 - General Maintenance Worker	18.75
23380 - Ground Support Equipment Mechanic	25.99
23381 - Ground Support Equipment Servicer	22.46
23382 - Ground Support Equipment Worker	23.68
23391 - Gunsmith I	21.10
23392 - Gunsmith II	23.42
23393 - Gunsmith III	25.99
23410 - Heating, Ventilation And Air-Conditioning Mechanic	21.48
23411 - Heating, Ventilation And Air Contidioning	22.58

Mechanic (Research Facility)	
23430 - Heavy Equipment Mechanic	28.45
23440 - Heavy Equipment Operator	23.21
23460 - Instrument Mechanic	25.99
23465 - Laboratory/Shelter Mechanic	24.75
23470 - Laborer	15.81
23510 - Locksmith	24.67
23530 - Machinery Maintenance Mechanic	27.10
23550 - Machinist, Maintenance	25.99
23580 - Maintenance Trades Helper	18.55
23591 - Metrology Technician I	25.99
23592 - Metrology Technician II	27.32
23593 - Metrology Technician III	28.46
23640 - Millwright	25.99
23710 - Office Appliance Repairer	24.75
23760 - Painter, Maintenance	21.37
23790 - Pipefitter, Maintenance	26.74
23810 - Plumber, Maintenance	25.44
23820 - Pneudraulic Systems Mechanic	25.99
23850 - Rigger	25.99
23870 - Scale Mechanic	23.42
23890 - Sheet-Metal Worker, Maintenance	25.43
23910 - Small Engine Mechanic	23.42
23931 - Telecommunications Mechanic I	28.72
23932 - Telecommunications Mechanic II	29.99
23950 - Telephone Lineman	27.29
23960 - Welder, Combination, Maintenance	29.05
23965 - Well Driller	25.99
23970 - Woodcraft Worker	25.99
23980 - Woodworker	21.10
24000 - Personal Needs Occupations	
24550 - Case Manager	17.71
24570 - Child Care Attendant	12.47
24580 - Child Care Center Clerk	15.55
24610 - Chore Aide	13.99
24620 - Family Readiness And Support Services Coordinator	17.71
24630 - Homemaker	17.71
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	25.86
25040 - Sewage Plant Operator	23.98
25070 - Stationary Engineer	25.86
25190 - Ventilation Equipment Tender	19.45
25210 - Water Treatment Plant Operator	23.98
27000 - Protective Service Occupations	
27004 - Alarm Monitor	16.39
27007 - Baggage Inspector	14.65
27008 - Corrections Officer	16.73
27010 - Court Security Officer	16.73
27030 - Detection Dog Handler	16.39
27040 - Detention Officer	16.73
27070 - Firefighter	16.73
27101 - Guard I	14.65
27102 - Guard II	16.39
27131 - Police Officer I	18.66
27132 - Police Officer II	19.59
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	17.55
28042 - Carnival Equipment Repairer	18.93
28043 - Carnival Worker	13.29
28210 - Gate Attendant/Gate Tender	18.79
28310 - Lifeguard	16.74
28350 - Park Attendant (Aide)	21.02
28510 - Recreation Aide/Health Facility Attendant	15.34
28515 - Recreation Specialist	26.03

28630 - Sports Official	16.74
28690 - Swimming Pool Operator	20.99
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	25.76
29020 - Hatch Tender	25.76
29030 - Line Handler	25.76
29041 - Stevedore I	24.44
29042 - Stevedore II	27.23
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	13.92
30022 - Archeological Technician II	16.70
30023 - Archeological Technician III	19.69
30030 - Cartographic Technician	18.56
30040 - Civil Engineering Technician	18.51
30051 - Cryogenic Technician I	21.24
30052 - Cryogenic Technician II	23.46
30061 - Drafter/CAD Operator I	13.92
30062 - Drafter/CAD Operator II	16.70
30063 - Drafter/CAD Operator III	17.35
30064 - Drafter/CAD Operator IV	20.52
30081 - Engineering Technician I	12.08
30082 - Engineering Technician II	15.27
30083 - Engineering Technician III	17.58
30084 - Engineering Technician IV	19.69
30085 - Engineering Technician V	26.64
30086 - Engineering Technician VI	32.43
30090 - Environmental Technician	18.46
30095 - Evidence Control Specialist	19.18
30210 - Laboratory Technician	18.19
30221 - Latent Fingerprint Technician I	21.24
30222 - Latent Fingerprint Technician II	23.46
30240 - Mathematical Technician	18.51
30361 - Paralegal/Legal Assistant I	20.67
30362 - Paralegal/Legal Assistant II	25.61
30363 - Paralegal/Legal Assistant III	31.33
30364 - Paralegal/Legal Assistant IV	37.90
30375 - Petroleum Supply Specialist	23.46
30390 - Photo-Optics Technician	18.51
30395 - Radiation Control Technician	23.46
30461 - Technical Writer I	18.56
30462 - Technical Writer II	23.16
30463 - Technical Writer III	28.04
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	21.24
30502 - Weather Forecaster II	25.84
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2) 17.35
30621 - Weather Observer, Senior	(see 2) 18.51
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	12.76
31030 - Bus Driver	17.26
31043 - Driver Courier	14.39
31260 - Parking and Lot Attendant	11.52
31290 - Shuttle Bus Driver	16.97
31310 - Taxi Driver	14.98
31361 - Truckdriver, Light	15.52
31362 - Truckdriver, Medium	16.33

31363 - Truckdriver, Heavy	22.14
31364 - Truckdriver, Tractor-Trailer	22.14
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	12.77
99050 - Desk Clerk	15.48
99095 - Embalmer	29.28
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	15.38
99252 - Laboratory Animal Caretaker II	16.58
99260 - Marketing Analyst	24.10
99310 - Mortician	29.28
99410 - Pest Controller	17.44
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	12.90
99711 - Recycling Specialist	15.38
99730 - Refuse Collector	12.07
99810 - Sales Clerk	14.39
99820 - School Crossing Guard	12.07
99830 - Survey Party Chief	16.49
99831 - Surveying Aide	14.11
99832 - Surveying Technician	19.33
99840 - Vending Machine Attendant	15.38
99841 - Vending Machine Repairer	18.39
99842 - Vending Machine Repairer Helper	15.38

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 1 week paid vacation after 1 year of service with a contractor or successor; 2 weeks after 2 years; 3 weeks after 5 years; and 4 weeks after 10 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractor in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer

Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ******Conformance Process:**

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the

authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."